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FOREIGN OFFICE, S.W.1.

12th November, 1951.

CONFIDENTIAL

OUTFILE

FJ 10310/13

Arthur Ringwalt brought me down this morning a letter (copy attached) from him to me about Livy Merchant's forthcoming visit to London. It was apparently agreed between the two Secretaries of State in Paris that Merchant should come to London for the purpose of discussions with me prior to Mr. Dulles' visit to Japan next month.

I am not quite certain that the State Department yet understand our attitude though it has been explained to them several times. As you know it is in brief that we shall accept a free decision taken by a free Japan - i.e. that if, after the San Francisco Treaty comes into force, the Japanese Government decide to recognise the Nationalist Government in Formosa, then we for our part shall accept that decision though on general grounds it would still be our view that Japan would be better advised to postpone a decision.

If, on the other hand, the Japanese Government are induced to take a decision and to announce it before the San Francisco Treaty comes into effect, then they will be open to the charge of having adopted a policy under outside pressure. The Japanese could not of course sign (much less ratify) a treaty with the Nationalists before the San Francisco Treaty took effect because until then they will not be free agents in the international field.

I told Ringwalt this morning that I thought that the United States Government might be laying up trouble for themselves, and taking a very big responsibility upon themselves, if they brought too much pressure to bear on Japan before the coming into force of the San Francisco Treaty. Yoshida himself might not be averse to having a decision forced upon him because he would thereby be able to put the blame afterwards on the Americans if things went wrong. But looking a little further ahead it seems to me very undesirable that the Americans should expose themselves to the charge of diverting Japanese policy one way or the other in regard to such an important matter as relations between China and Japan.

I told him also that there was a domestic political aspect to this and that it might be embarrassing to H.M. Government if in the course of the hearing in the Senate prior to ratification any announcement was made to the effect that Japan was going to conclude a treaty with Formosa. I enclose a copy of the agreement reached on June 19th between Mr. Morrison and Mr. Dulles on "Chinese pariticipation and Formosa". This was not published. Undue pressure by the United States Government on the Japanese Government might be taken as a breach of the spirit of this agreement.

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Sir Esler Dening, K.C.M.G., O.B.E.,
Tokyo.

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FO 371/92604
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We shall of course keep you informed as to the progress of these talks with Merchant but I am sending this now (with a copy to Tomlinson) so that you will know the background of Merchant's visit.

(R.H. Scott)

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